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# Virginia House of Delegates Floor Session, Regular Session, Friday, January 23, 2026

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**[00:12:38]** The House will come to order. Members, please take your seats. Head page. The House is now in session. All persons not entitled to privileges of the floor, please retire to the gallery. The members will rise and be led in prayer by Reverend Dr.

**[00:13:03]** Anthony L. Goodwin, Old Cool Spring Baptist Church, Franklin. And remain standing for the Pledge of Elitist of the Flag of the United States of America, which will be led by the Delegate from Alexandria, Delegate Herring. Thank you to the Speaker of the House, members of this House of Delegates, and the Honorable Nadarius Klopp.

**[00:13:22]** Let us pray. Father God, It is to you that we give the glory, honor, and majesty. The creator of heaven and earth who speaks and calls the earth from the rising of the sun to the setting of the same.

**[00:13:39]** We pray special thanks today, God, to the members of this house of delegates and the honorable Nadarius Clark for the privilege of standing in this hallowed and historic place. To invoke your presence, your promises, and power whose laws are true and whose will are good and gracious.

**[00:14:01]** Father, I pray for those who are in authority. So I lift up the members of this house of delegate before thee. I ask you, God, to guide, to lead, bless, give courage, wisdom, and foresight to this assembly to provide for the needs of all people and to bring unity to this commonwealth and nation.

[00:14:22] I pray that you will cause this assembly to be motivated more by your words than partisans and personal concerns. My prayer today, God, is may you favor the leaders of our commonwealth like Moses, fight for them like the Israelites, prosper them like Isaac, promote them like Joseph, intervene for them like Esther, protect them like Daniel, use them like Paul, heal them like Naaman, answer them like Elijah, anoint them like David, but most of all, keep them safe like Shadrach, Meshach, and Abednego.

[00:14:56] As the delegates of this general assembly label to make this commonwealth a nation great it is to god be the glory for the great thing that you have already done god and are about to do may god richly bless this great house of delegates and this great nation in the matchless marvelous name of jesus the christ we pray let the church say amen may god bless america god bless him

[00:15:23] The members will answer the roll call by indicating their presence on the electronic voting board.

[00:16:09] Clerk will close the roll. Mr. Speaker, a quorum is present. Pursuant to House Rule 3, I have examined and approved the Journal of the House of Delegates of January 22, 2026. Motions of resolutions under Rule 39, pursuant to the provisions of Rule 40, are now in order. Does the clerk have any announcements or communications?

[00:16:25] No communications, just one announcement by way of important reminder. Bills need to be filed with the clerk's office by 3 o'clock today, either online or here at the front desk. It's a hard deadline at 3 o'clock for bills. Mr. Speaker, then, in this first portion of the morning hour, a speaker request to use the request to speak button for those items listed for reference up on the voting board.

[00:16:47] Delic from Suffolk, Delic Clark. Thank you, Mr. Speaker. Rise for introduction. The delegate has the floor. Thank you, Mr. Speaker. Today in the gallery, we were just blessed by Pastor Goodwin for that invocation.

[00:17:04] If him and his family could please stand. Pastor Goodwin is a native of Greenville County, was born to Irma in the late Otis Goodwin Sr., and has devoted his life to faith, family, and service. He is the proud father of three children, Sharon, Antonette, and Anthony Jr., and the loving grandfather of seven grandchildren alongside a cherished daughter-in-law, Ida.

[00:17:27] His educational journey includes an associate of applied science and electronics, over 100 professional certifications, and an advanced theology degree, cumulating in a doctor of ministry in 2016. Pastor Goodwin began his preaching ministry in 1973 and has faithfully pastored churches in Franklin, Virginia, since 1985.

[00:17:50] He has also served at Virginia Union University, my alma mater, led regional clergy, and sustained a radio ministry for more than 30 years. I am honored to introduce Pastor Goodwin and grateful for his presence here as he represents the city of Franklin, a close-knit community of just over 8,000 residents in my district, and I hope it will be the will of the body to give him a warm house welcome.

[00:18:18] Welcome. Welcome to the Capitol today. Delegate for Roanoke City, Delegate Rasul. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction. The delegate has the floor. Thank you, Mr. Speaker, ladies and gentlemen of the House.

[00:18:35] Today, we welcome the Virginia Dental Hygienists Association, if they can please rise. The Virginia Dental Hygienists Association is a professional organization representing 6,000 licensed dental

hygienists across the Commonwealth, and one very important one, my wife.

[00:18:54] The dental hygienists are essential members of our oral health care workforce, delivering preventative and therapeutic services. I know when she came to me, we had three young children and said, I want to go to dental hygiene school. It was two long years of daily full-time clinical work. I said, there's no good time to go back to school like that. So let's just do it every day.

[00:19:21] If you can join me in giving the dental hygienists a warm house welcome. Welcome. Welcome to the Capitol today. The delegate for Fairfax, Delegate Tran.

[00:19:38] Good morning, Mr. Speaker. I rise for the purpose of two introductions. Delegate, that's the floor. Thank you so much. Mr. Speaker, members of the House, joining us in the gallery today are Northern Virginia resettling Afghan families together, but are known as Nova Raft, Fresh Start, and high school students who fled the Taliban in Afghanistan and have made their home here in our Commonwealth, and I ask that they stand.

[00:20:04] Nova Raft is a coalition of individual volunteers, churches, synagogues, and mosques in Northern Virginia. Together they have provided nearly 1.5 million dollars and helped establish more than 300 fully furnished homes for Afghan families. They offer critical support to our new neighbors, helping them to integrate into our communities by assisting with employment, obtaining a driver's license, enrolling in school, and navigating daily life in a new country. Mr. Speaker, I'm so proud of of our Afghan youth visitors. After experiencing fear, upheaval, and the loss of everything

[00:20:41] familiar, they've shown incredible resilience. They've learned a new language, adapted to new customs, and are building new and bright futures. And I've told Mr. Speaker that they're passing their SOLs with flying colors. Their strength, determination, and hope are really, truly inspiring. Mr. Speaker and members of the House, I ask that you join me in giving

[00:21:04] these students fresh start and over raft a warm house welcome welcome welcome to the capital today the delegate from here right mr mr speaker oh two of them two of them sorry my second introduction mr speaker the delegate has the floor thank you um mr speaker members of the house i joining us in the gallery today are policy makers and advocates from ukraine and i ask that

[00:21:37] they rise to be recognized thank you so much um these individuals are visiting the commonwealth through Open World, an international exchange program that connects emerging leaders with their counterparts in the United States to promote democratic values, civic engagement, and accountable governance.

[00:21:57] Our visitors from Ukraine today are senior practitioners and policymakers working on adoption, foster care, and mentoring reforms, including leaders of the Ukrainian Mentoring Association. Since the start of the war, they've helped to rescue more than 30,000 Ukrainians, more than half of whom are children, while all at the same time continuing to strengthen child welfare systems under truly extraordinary circumstances.

[00:22:24] Their visit is hosted in partnership with Kids Save, an organization committed to protecting children and supporting families. Mr. Speaker and members of the House, I ask that you join me in giving a warm welcome to our Ukrainian guests. Thank you so much.

[00:22:48] Welcome. Welcome to the Capitol today. The delegate from Henrico, Delegate McQuinn. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction as well as an announcement. The delegate has the floor. Thank you, Mr. Speaker. Good morning.

[00:23:04] In the gallery today, I'm pleased to welcome representation from VCU Massey Comprehensive Cancer Center. They were here with us today and this morning at the caucus, and they presented. And so they are supposedly in the gallery.

[00:23:20] Massey recently celebrated its 50th anniversary and achieved NCI comprehensive designation ranking among the top 4% of cancer centers nationwide. This designation opened doors for Massey to deepen research, attract top-tier scientists, and advance new cancer treatment.

[00:23:40] What sets Massey apart is its community-centric approach, engaging in meaningful conversation and breaking down barriers between community and medical organization. A leader in cancer research, education, community engagement, Massey served Virginia by making clinical trials more accessible, advancing their understanding of cancer, and training the next generation of scientists.

[00:24:04] In looking to 2026, the Cancer Center aims to make further advancement in cancer prevention, screening, treatment, and survivorship care, ensuring accessibility for all Virginians, particularly those in rural areas. VC Massey Comprehensive Cancer Center is not just a center of excellence, it's a force driving positive change in the fight against cancer.

[00:24:28] I ask that you at this time would just join me in welcoming them and applauding them for their great work. Thank you. And Mr. Speaker, just to add on to this in terms of the announcement, And I want you to not to forget to mark your calendar for February the 23rd at the Segal Center for the 17th year of the Capitol Square Basketball Classic benefiting Massey.

[00:24:59] This time, honored tradition is not only a heated competition between the House and Senate and the lobbyists and the governor's office, but a way for us to reach across the aisle and raise valuable funds for groundbreaking cancer research in the Commonwealth.

[00:25:14] And you'll be hearing more about that as time goes on. Thank you, Mr. Speaker. The delegate from Arlington, Delegate Lopez. Thank you, Mr. Speaker. Thank you, Mr. Speaker. I rise for an introduction. The delegate has the floor.

[00:25:30] Thank you, Mr. Speaker. It's my pleasure to welcome the Virginia PTA to the Capitol today. If they're in the gallery, I hope they'll stand. Virginia PTA is the oldest and largest nonpartisan child advocacy volunteer association in Virginia with more than 130,000 members across more than 880 of Virginia's public schools.

[00:25:51] As the fifth largest PTA in the nation and the leader in supporting school parent groups, Virginia PTA works to strengthen Virginia's schools and communities through parent and family engagement and advocates for the academic success, health, and well-being of all children. In particular, I'd like to welcome the 42 students and staff from the 3rd District's Thomas Jefferson Middle School who are here watching from House Room 3.

[00:26:16] Please join me in thanking our parent volunteers for the work they do to support our school communities, And let's give them a warm house welcome. Welcome.

[00:26:34] Welcome to the Capitol today. Delegate from Fauquier, Delegate Weber. Mr. Speaker, I rise for an introduction. Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, joining us in the gallery today are junior fox hunters from all across Virginia.

[00:26:52] I ask that they please rise. They're in the gallery. Mr. Speaker, included in this talented group of young people who fearlessly ride horses across the country. And to be honest, I'd be scared because I'd probably break my neck.

[00:27:10] But Mr. Speaker, in this group are members of the Rappahannock Hunt. Mr. Speaker, the Rappahannock Hunt is celebrating their centennial. In 1926, they formed and they have been bringing our community and our young people opportunities to connect with horses, our traditions, and the outdoors.

[00:27:36] Along with learning responsibility, teamwork, horsemanship, and a great appreciation for our Commonwealth's heritage. So, Mr. Speaker and members of the House, I ask that you join me in giving them a warm House welcome. Welcome. Welcome to the Capitol today.

[00:28:08] Pursuant to House Rule 30, the journal shall reflect that the following members are aware on pressing personal business on a granted leave from today's session. Delegates Austin, Knight, Martinez, and Ware. The clerk shall announce the next order of business. Speaker, the second portion of the morning hours reserve members' requests to move legislation from an uncontested to the regular calendar.

[00:28:27] I'm not aware of any such requests. clerk shall announce the next order of business. Third portion of the morning hour reserved for a member request for legislation to go by for the day of any subsequent motion by the majority leader. I'm not aware of any such in this category either. The clerk shall announce the next. And Mr. Speaker, the fourth and final portion of the morning hour reserved for member requests for points of personal privilege. Please use your request to speak button to get into the queue.

[00:28:46] Delegate from Richmond City, Delegate Cousins. Thank you, Mr. Speaker. I rise for a point of personal privilege. The delegate has the floor. Thank you. Yesterday, the United States District Court for the Eastern District of Virginia, here in Richmond, issued a historic opinion finding that Article 2, Section 1 of Virginia's Constitution, stating no person who has been convicted of a felony shall be qualified to vote unless his civil rights have been restored by the governor or appropriate authority, is in violation of federal law, and that Virginia's

[00:29:22] constitutional amendments of felony disenfranchisement have also been in violation of federal law for well over a century. Mr. Speaker, the opinion is a masterclass in statutory construction and legislative intent. For historical context, after the Civil War, Congress enacted the Military Reconstruction Act in 1867, requiring Confederate states to uphold the 13th, 14th, and 15th Amendments to be readmitted to the Union.

[00:29:54] Congress then passed the Virginia Readmission Act after it was satisfied that Virginia's draft constitution upheld voting and other rights for black men. The act also forbade Virginia to amend its constitution to disenfranchise voters, but did allow a limited exception as punishment for such crimes that were felonies at common law in 1870 when the act was passed. The case before the court involved two plaintiffs who in 2023 brought a class action suit against election officials in Virginia, alleging that they were

[00:30:31] wrongfully disenfranchised under Virginia's constitution because they had not committed crimes that were felonies at common law in 1870. In his opinion, Judge Gibney turns to the plain text of the Virginia Readmission Act and states that it means what it says. Virginia cannot amend its constitution to disenfranchise citizens, accept its punishment for such crimes as were then felonies at common law in 1870. He continues that any other reading ignores ordinary meaning

[00:31:04] and contravenes statutory structure. Words matter, Mr. Speaker. And what this means is that the constitutional changes that Virginia made in 1876 to require poll taxes and to disenfranchise voters for crimes of petty larceny violated the Virginia Readmission Act, and further amendments to Virginia's Constitution in 1902 that expanded the felony disenfranchisement list and that resulted in the number of eligible black voters decreasing from 147,000 in 1901

[00:31:40] to around 10,000 by 1905 also violated the Virginia Readmission Act. And that ultimately, the current felony disenfranchisement provision in Virginia's constitution amended in 1971 is a continued violation of the Virginia Readmission Act.

[00:32:00] And Mr. Speaker, here not only does the court rely on the plain reading of the statute and its ruling, but it also turns to the legislative intent of Virginia's Constitutional Convention of 1902 as proof that Virginia intended to disenfranchise black voters in spite of Congress directing Virginia and other Confederate states to uphold voting rights for black men.

[00:32:26] In his opinion, Judge Gibney notes that when asked whether the 1902 Constitution would deprive Black voters of their rights by fraud and discrimination, State Senator Carter Glass responded, and I quote, by fraud, no. By discrimination, yes. But it will be discrimination within the letter of the law and not in violation of the law. Discrimination. Why, that is precisely what we propose. That exactly is what this convention was elected for, to discriminate to the very extremity of permissible action under the limitations of the federal constitution

[00:33:06] with a view to the elimination of every Negro voter who can be gotten rid of legally without materially impairing the numerical strength of the white electorate. He continues, it is a fine discrimination, indeed, that we have practiced in the fabrication of this plan and we ask the convention to confirm our work and emancipate Virginia, end quote. Judge Gibney closes his opinion by noting that nearly 125 years after Senator Glass pleaded to emancipate Virginia

[00:33:44] from Black voters, a class of would-be voters appears before this court asking for true emancipation at the Commonwealth's ballot boxes. Mr. Speaker, 125 years later, Black Virginians are still fighting for their rights to vote. 130 years after the Plessy v. Ferguson decision establishing the separate but equal doctrine. Over 70 years after massive resistance here in Virginia and the Brown v. Board of Education decision declaring the separate but equal

[00:34:18] doctrine unconstitutional. It is cases like this, opinions like Judge Gibney's, that inspired me to become a lawyer, learning about civil rights attorneys like Richmond's own Oliver Hill and Spotswold Robinson. This is the power of the law. And with Judge Gibney's ruling here in the capital of the Confederacy, justice has prevailed again. Thank you, Mr. Speaker.

[00:34:46] Clerk will call the calendar.

[00:35:10] Mr. Speaker, the calendar for today, Friday, January 23rd for the Virginia House of Delegates, page two of the printed calendar, if you're following that way, one bill in the category I have House bills on

second reading, regular calendar. House Bill 1384 is a bill to provide for the submission of the voters the proposed amendments to the Constitution of Virginia by amending Section 6 of Article 2.

[00:35:30] And by adding a schedule a Section 6 to amend and reenact items 564-14 of Chapter 725 of the Acts of Assembly 2025, which appropriated the public revenues for two years ending respectively on June 30th, 2025, June 30th, 2026. And to amend Chapter 725 of the Act of Assembly of 2025, which appropriates the public revenues for two years ending respectfully on June 30th, 2025 and June 30th, 2026.

[00:35:54] By adding an item number 78.10, which appropriates the public revenues for two years ending respectfully on June 30th, 2025 and June 30th, 2026. And finally, to repeal Section 30-13 of the Code of Virginia relating to the General Appropriations Act Department of Elections. legislation was reported on appropriations. With a substitute, Mr. Speaker, the patron Chairman Torian has a floor substitute, and there are two amendments offered by, floor amendments offered by several by Delegate Wren and several by Delegate Kilgore.

[00:36:28] A delegate from Prince William, Delegate Torian. Thank you, Mr. Speaker. Mr. Speaker, I move the adoption of the Appropriations Committee substitute but i request the house to reject that motion shall the committee substitute be agreed to all those in favor say aye those opposed no the committee substitute is rejected the delegate from prince william dougat thank you mr speaker mr speaker i move the adoption of the floor substitute and i'd like to explain the substitute delegate has the floor thank you mr speaker this substitute

[00:37:01] makes two changes to the committee substitute. First, it spells out three enactments, enactments 14, 15, and 16 being amended in the title of the bill. Second, it adds a new 17th enactment that moves the venue of any court proceedings relating to any constitutional amendment to the circuit court of the city of Richmond. Mr. Speaker, I move adoption of the floor Mr. Speaker, I want to get the substitute before you first.

[00:37:35] Yeah, I want to ask about the substitute. The delegate from Kilgore, I mean, delegate from Scott, delegate Kilgore. Thank you. Thank you, Mr. Speaker. I would ask the chairman, in section, in line 184 in the new substitute, you transferred any pending suit affected by this legislation to the city of Richmond.

[00:38:00] And I would ask the chairman or whoever else needs to answer the question, how does this, how does this, with the U.S. Constitution, how does it get by the U.S. Constitution, Section 10, Article 1, Section 10, where it says there should be a no ex post facto law, meaning that, you know, the lawsuit's already been filed in other counties, and how does it, how do you get past the ex post facto law?

[00:38:28] And I'm asking this question, Mr. Speaker, so it shows that there is some federal jurisdiction here, just so you know. Okay. Yes, Mr. Speaker. The delegate from Prince William, Delegatorian. Yes, Mr. Speaker, I yield to the delegate from Fairfax, Delegate Simon.

[00:38:46] The delegate from Fairfax, Delegate Simon. Mr. Speaker, members of the House, I would answer the delegate that this is a purely procedural, it's not substantive, it's just a procedural thing, it's about where venue lies. We have the ability to set venue. We do it in a number of other places in the code, certain types of cases, venues established in the city of Richmond.

[00:39:05] Sometimes we have preferred venue. Sometimes we have mandatory venue provisions. Sometimes we have completely voluntary venue, but venue is a matter of civil procedure here in the state,

not substantive law. And so I think we're well within our rights to have such a provision in this bill. Further questions, Mr. Speaker?

[00:39:22] Delegate from Scott County, Delegate Kilgore. Wouldn't it in fact be the, wouldn't it be in fact the issue would be that there was a lot of questions asked by the judge in Tazewell County about some of the laws that have been and you're trying to get a better venue.

[00:39:41] Is that, would that, would you, first, would the gentleman agree with me? Delegate from Fairfax, Delegate Simon. Mr. Speaker, I would answer the delegate that I would not agree with that, that this is a standard sort of procedure, particularly when you're dealing with state agencies. And like the Board of Elections that would be involved, the clerk here, the court who's here residing in Richmond, it's not uncommon for us to set venue in the city of Richmond.

[00:40:01] I don't know that it has anything to do with anything that's happened in the past. Further question, Mr. Speaker? The delegate from Scott County, Delegate Kilgore. Thank you, Mr. Speaker. I would ask the gentleman, can the gentleman point, I've been here a long time, but can the gentleman point to any other bill or legislation where we've taken a setting court case and moved it to the city of Richmond after the court case has already started.

[00:40:28] Hearings have been had and answers and briefs have been filed. Mr. Speaker, I would answer the delegate that I haven't done that research. There may or may not be another case that I'm not familiar with at all. Further question, Mr. Speaker? For the delegate, you have several more questions.

[00:40:47] Mr. Speaker, this is my last question. It's like you're trying to create some kind of record, maybe. For a final question. Did the Elias Law Firm advise the House Democrat Caucus to take such action? Mr. Speaker, I can't answer that question. I don't know what the—I certainly didn't receive any advice from the firm.

[00:41:04] Thank you. Thank you, Mr. Speaker. Thank you. You're welcome. The delegate from Patrick County, Delegate Williams. Yes, Mr. Speaker, I rise to offer an amendment at the appropriate time. It's not appropriate. This is not the appropriate time. Shall the floor substitute be agreed to?

[00:41:23] All those in favor say aye. Those opposed, no. The floor substitute is agreed to. Ayes and nays, 64 to 36. Let's do it. Ayes and nays. Clerk, open the roll.

[00:41:45] Clerk will close the roll. Ayes, 61. Nose, 34. Ayes, 61. Nose, 34. The floor substitute is before us now. The delegate from Patrick County, Delegate Williams.

[00:42:03] Yes, Mr. Speaker, I'd move an amendment to the substitute that was just offered. Mr. Speaker, point of order. The delegate has the floor. I'm looking at IHOT. I see some amendments from Delegate Kilgore and IHOD. I haven't seen anything post from Delegate Williams. Are those live on IHOD for us to be able to see?

[00:42:22] House B&E. Delegate from Chesapeake, Delegate Leftwich.

[00:42:58] Mr. Speaker, once we get this in proper form, I have a question for the patron. I'm not sure if this is... It's not the problem. Well, we don't have a floor substitute before, so, yeah, what's your question? For the delegate, you. I'm going to speak out of you.

[00:43:14] Delegate, you. Thank you, Mr. Speaker. I would ask the patron if there's any precedent for making legislation retroactive decades, you know, 50 years or more. The delegate from the delegate to the

delegate from Fairfax.

[00:43:32] The delegate from Fairfax County, Delegate Simon. Mr. Speaker, members of the House, I would answer the delegate. There is precedent for making legislation retroactive, particularly in the election space. Back in 2017, there was an outdated statute that was obsolete on the books that had to do with the way we conducted local elections.

[00:43:52] And we realized in 2017 that that had been an era since, I'm going to say, since roughly the year 2000. So it had been about 17 years, I believe. Don't hold me to that exact date. And so in 2017, we passed legislation, bipartisan basis.

[00:44:10] I think it passed 99 to 1 to retroactively change that law. So, yes, Mr. Speaker, there is precedent for such a change. Follow-up question, Mr. Speaker. The delegate from Chesapeake, Delegate Lefwich. Thank you, Mr. Speaker. I'd ask the gentleman, what error are we trying to fix from 1971?

[00:44:29] The delegate from Fairfax, Delegate Simon. Mr. Speaker, members of the House, I would answer the delegate that when the 1971 Constitution was amended, It set up a process for making sure the voters would be informed of the contents of a constitutional amendment by creating a 90-day period between the second reference resolution passing and the election on the amendment.

[00:44:54] Prior to that, there had been a process that had been in place that required some notice prior to the resolutions being introduced, that had to do with sending it and posting it to the clerk's office. That language was really rendered obsolete by the 1971 Constitution. They even debated whether they should use the old process or whether they should have a new process in the new 1971 Constitution during the convention.

[00:45:15] The notes from the convention say that they opted for this new method, which is captured in 30-19, over what was sort of left over in 30-13. So the error was in failing to have the code match the new Constitution back in 1971 and really essentially repeal 30-13 in favor of 30-19.

[00:45:36] Thanks, gentlemen. The delegate from Patrick County, the clerk will explain where we are right now. Ms. Speaker, so we've adopted the floor, substitute by Delegate Toria and the bill's patron. Delegate Williams has a substitute, which we're having technical difficulties with LIS.

[00:45:56] So I'm, Speaker, prepared to read the amendment. We're going to make hard copies available to everybody. That way everyone knows what we're doing. Mr. Speaker. The delegate from Patrick County, Delegate Williams. Mr. Speaker, I don't know if you know this. I'm a little bit hard of hearing, and I cannot listen as fast as Paul Nardo can talk.

[00:46:13] I can talk slower. So if he could slow that down, this might be the only time Virginia hears these words. Mr. Speaker, floor amendment offered to House Bill 1384 by Delegate Williams, line 156 of the substitute, after question, strike the remainder of line 156 and all of the lines 157 and 158, and then insert the following.

[00:46:41] Shall the Constitution of Virginia be amended to allow the General Assembly, instead of the Virginia Redistricting Commission, to draw congressional district boundaries for the 2026 and 2028 elections, with the commission process resuming after the 2030 census?

[00:47:00] New sentence. A yes vote means the General Assembly will draw new congressional district lines for the 2026 and 2028 elections. The Biparties Redistricting Commission will not draw these districts.

After the 2030 census, the commission will resume drawing congressional districts.

[00:47:16] State legislative districts are not affected. State cost approximately $5.5 million one time. Finally, a no vote means the current congressional districts remain in place for the 2026 and 2028 elections. The Virginia Redistricting Commission continues to be responsible for drawing congressional districts.

[00:47:36] no changes made to the redistricting process, no additional state cost. That is the amendment by Delegate Williams. Mr. Speaker. Delegate for Fairfax, Delegate Simon. Mr. Speaker, I move that the amendment, as reported by the clerk, be passed by. Delegate for Fairfax, Delegate Simon moves that the amendment be passed by. All those in favor, say aye.

[00:47:52] Aye. Those opposed, no. No. Nay. Clerk will put it on the board. Mr. Speaker.

[00:48:24] Are you going to do a question on the board? House abilities.

[00:48:27] An order.

[00:49:32] Clerk will open the door. Clerk will close the roll.

[00:49:49] Mr. Speaker, ayes 61, noes 34. Ayes 61, noes 34. The motion to pass by is agreed to. The delegate from Patrick County, Delegate Williams. Yes, Mr. Speaker. I guess I'm speaking to the two minutes here. I'm speaking to the bill. Speaking to the bill. Speaking to the bill after the motion passed by. The delegate has the floor. All right. Thank you. Thank you all for voting 61 to 34, to pass by this nonpartisan independent commission language.

[00:50:24] You heard Mr. Nardo, Clerk Nardo, read it out for us. And I wanted to mention that it was going to be important that we take up something a little stronger than what the Democratic Party has put forward, specifically the language of restore fairness in the upcoming election.

[00:50:47] likely the most charged language speaking to the bill literally reading the bill should the Constitution of Virginia be allowed to that's the bill can you restore fairness that's an argument and my question is did you guys check out my reading or writing an amendment and ask yourself why would I do something like that why why why why because there's other states that already do this. They have a lot of different parameters that they like to do to make it fair even. They've

[00:51:26] all got independent commissions and some of the things they do is they include a grade level readability test. My amendment scores a 10.1 which is about a 10th grade reading level. Your amendment scores a 14.2 which is a junior or a sophomore in college level. Mine mentions the fact that you're bypassing something rather than just voting for fairness. Mine discloses that 5.5 million dollars one time will be spent on this special election that only you want. Mine specifies which

[00:51:59] elections because we don't want any more crises to pop up after 2028 in case, you know, some Republican wins a presidential nomination and you guys have to save the democracy again. Mine does not use argumentative language. You guys use heated language that says restore fairness. What is not fair about the current maps that we've all run and that we've all sat in and that the rest of virginia the ones that you want to disenfranchise do not get to have a say in the next two congressional

[00:52:35] midterms it's wrong you guys know it and i hope you would actually pass my amendment the delegate from scott county delegate kilgore i'm going to take up my amendment yes clerk will report the

Mr. Speaker, Delegate Kilgore has offered amendments, five of them, to the floor substitute by the chairman, Delegate Torian.

[00:53:03] Those are available online, so everyone has them. The public can see them as well. So those amendments offered by Delegate Kilgore are now before the body. Delegate from Fairfax, Delegate Simon. Mr. Speaker, I move to pass by the amendments. The delegate from Fairfax, Delegate Simon, moves to pass by the floor amendments.

[00:53:23] That's a two-minute debate. Do I have my two minutes? You have your two minutes. All right. Thank you, Mr. Speaker. You know, 1971, I was not here in 1971, for those of you all who think I was. I was in fifth grade class with Ms. Thomas struggling in math in 1971.

[00:53:41] But, you know, going back to 1971, what this amendment does is fixes that. We do not need to be going backward to 1971. I understand you have a problem in the code, but fixing this in this way and passing an ex post facto law, I think is wrong on its face.

[00:54:02] And I also believe that as we look at this particular code section and look at what the code commission did, the code commission did not vote. I hear that you all say the co-commission did not vote to go back retroactively.

[00:54:18] So that's another argument in favor of this amendment. So what this amendment does is it takes all that retroactivity out and lets you go forward with doing away with the 90 days, which I thought that's what you wanted to do. So, Mr. Speaker, that would have been my amendment had it not been passed by.

[00:54:39] It hasn't been yet. Not yet. It's about to. Don't get ahead of us. I'm going to be clear that my motion was to move passed by all the amendments. I think the one substantive and the others were just renumbering as a result of that, but the motion is to pass by all five amendments in block.

[00:54:58] Mr. Speaker, they're all in a block. Thank you. This is a recorded vote to ask for R's and A's. Oh, no. I'm sorry. Pass by. Shall the five amendments be agreed to? Pass by. I mean, pass by. One, two, three, four, five.

[00:55:18] Shall the five amendments be passed by? Oh, I thought y'all already... Clerk, call the roll. I mean, open the roll. Clerk, I thought we'd already done all of that.

[00:55:38] Clerk, close the roll. Mr. Speaker, I-61, no's 34. I-61, no's 34. Those five amendments are passed by. The delegate from Newport News, Delegate Price.

[00:56:00] Good. Shall the bill be engrossed... Oh, shall the bill be engrossed and passed until it's third reading? Mr. Speaker, I apologize. I had my light on at the last minute. I'm sorry. The delegate from Washington County, Delegate O'Quinn. Yes, sir, Mr. Speaker, speak into the bill.

[00:56:16] The delegate has the floor. Thank you, Mr. Speaker. So when I was elected and came down here, I've told you all this before, we had 68 Republicans and I sat way over on that side of the chamber. And so, you know, I came in thinking, I can do anything I want.

[00:56:33] So I filed this bill and I'd have to go back and look and see what it even did. But I remember the story very well. And it was some bill that, you know, told Congress to do such and such and extolled the executive branch to do, you know, X, Y and Z. And so filed the bill. We got the session. We were three or four days in and I got called up to the principal's office.

[00:56:54] And Speaker Howell said, come on in here. And he, you know, in his normal, affable way, you know, was, you know, how's it going? Are you having a good time? So on and so forth. And he said, well, let me just cut to the chase. we're not going to pass your bill. And I said, well, why not Mr. Speaker? It's a, it's a good bill. We, we really need to, uh, we really need to stick at the Congress. Um, you know, we really need to tell the president to do such and such. And he said, listen, you could come down here and spend this entire legislative session. All of us could trying to tell the president to do something, trying to tell Congress to do something, trying to legislate uphill. And he said, it just doesn't

[00:57:32] work. And he said, furthermore, you don't want to have to be reacting to every single thing that comes out of Washington, D.C. So in conclusion, we're not going to pass your bill, but keep up the good work and hope you have a great session. So Mr. Speaker, what I learned from that is that things change in Washington, D.C.

[00:57:51] And it used to be that things changed on a cycle-to-cycle basis. Every two years, every four years, every six years, things might change pretty drastically. It feels like at some point that shifted into sort of a change in almost on a year-to-year basis, but somewhere down the line, it got to where it changes on a day-to-day basis.

[00:58:09] And things also change in Virginia, Mr. Speaker. I mean, we've seen some wild pendulum swings in the Commonwealth over the last decade. And the real lesson here is what gives today might just take away tomorrow. And so today, we're about to vote on a pretty extraordinary bill that's taken a pretty extraordinary path and is going to do, frankly, several extraordinary things.

[00:58:32] And I think that most any political pundit would tell you that Virginia is a purple state that tilts Democratic at the moment and our map that has six Democrats and five Republicans in Congress really pretty accurately reflects about the way the Commonwealth is divided when you look at things regionally. And so now we're in a situation where, depending on who you believe and who you listen to and who you follow on X or Facebook or whatever else, we could have as many as seven congressional seats anchored in Northern Virginia. Now, that's a good thing for some of you because I know several of you want to run for Congress.

[00:59:09] You've told me you want to run for Congress. And so that's a good thing for you. But I'm not sure that's a good thing for Richmond. I'm not sure that's a good thing for Hampton Roads. It's not a good thing for the Valley. But really, it's not good policy for the Commonwealth of Virginia.

[00:59:25] And so, Mr. Speaker, I would ask that we take that same lesson that I learned the hard way on about day number three of my very first session, that we focus on Virginia, that we don't get wrapped around the axle with what's going on in Washington, D.C., because what you love today, you just might hate tomorrow, and vice versa.

[00:59:44] And so, Mr. Speaker, I don't say this lightly. We are Virginia. We have always done things differently here. We've always worked to stay above the fray, and we haven't engaged in arms races, and we haven't done something just because North Carolina or Texas or California or Illinois did it.

[01:00:01] And so, Mr. Speaker, I would implore us to adhere to the Constitution of Virginia and to not start down this road that doesn't have an offering. Thank you, Mr. Speaker. The delegate from Prince William, Delegatorian.

[01:00:20] Thank you, Mr. Speaker. Mr. Speaker, speaking to the floor of Substitute for House Bill 1384. The delegate has the floor. Thank you, Mr. Speaker. The substitute before you is an appropriation bill amending Chapter 725, the budget for the current biennium that we all passed last session.

[01:00:38] The bill contains on lines 17 through 83-3 separate appropriations. It provides $100,000 each for the Division of Legislative Services and the Division of Legislative Automated System for costs associated with the April 21, 2026 special session.

[01:00:56] And $5 million to the Department of Elections for the same purpose. Beginning on line 84 through line 158, it sets out the process and ballot question that will be presented to the voters regarding the redistricting modifications to congressional districts between January 1, 2025 and October 31, 2030.

[01:01:19] Lines 159 through 161 contains the repeal of 30-13 of the code. Lines 162 through line 162 through line 169 contains a new language that stipulates that any action or suit related to the constitutional amendment shall be the venue of the circuit court of the city of Richmond.

[01:01:43] And, Mr. Speaker, at this time, I would like to yield to the delegate from Newport News for further details and answers to any questions. Delegate from Newport News, Delegate Price. Thank you, Mr. Speaker. I would just simply add that the most important part of this document to me is on line 198.

[01:02:02] And it says all of these words are contingent upon a majority of the voters on April 21st in that special election. vote yes to allow the General Assembly to level the playing field for fairness and to undergird our democracy and Mr. Speaker speaking to the bill Yes, thank you. I'm sorry I just wanted to respond and I know you're trying to teach me that not everything needs a response But you know sometimes you just got to clear the record and so when I heard this that nobody wants this money Well, I've heard that the localities are thankful that the money is being put in there to help offset the cost of this

[01:02:40] And the other part is, I do not underestimate the intelligence of the voters of Virginia. But just in case they need help, there's another part that's coming that we said yesterday. It's called an explainer, and that is the plain language. But when we're changing the Constitution, some of those words need to be in certain ways.

[01:03:00] And so the other thing, Mr. Speaker, I will just say, sorry, two more things. So we cannot take lightly that in this document, this big old document, on page 60, a bipartisan unanimous vote, including Senate Minority Leader McDougal, voted unanimously for the revision of Title 30 of the Code of Virginia to include repealing 30-13.

[01:03:30] So along with, Mr. Speaker, representatives from the previous attorney general's office and also, Mr. Speaker, appointees from the previous governor's administration. So that was that vote was taken, Mr. Speaker, before this argument became inconvenient for them.

[01:03:49] And I will just say that if anyone wants to minimize how deeply decisions from Washington impact Virginia, they have not been listening to any of the meetings of the 14 standing committees of the Virginia House of Delegates where every single committee is trying to figure out what can we do to respond to the harm that is coming from Washington.

[01:04:15] So I choose to not stand from high above in a place of privilege, but to understand the people that I represent are being deeply impacted from the dysfunction and chaos. And it is incumbent upon me as a representative of those 83,000 people to help protect their vote.

[01:04:34] Thank you, Mr. Speaker. The delegate from Prince William, Delegatorian.

[01:04:51] Mr. Speaker, I move that the bill be engrossed and passed to his third reading. The delegate from Betford, Delegate Griffin. Mr. Speaker, speaking to the substitute. The delegate has the floor. I want to address specifically, I think, the issue that the honorable gentleman from Fairfax brought up, which is the ex post facto issue.

[01:05:09] This is the idea that, you know, we don't go backwards and pass a law on something that's already started, right? So the issue here, as we know, is that a lawsuit has begun in Tazewell County, and the results might not be what the majority party wants, so they're going to try to change venue in the middle of it.

[01:05:24] Now, when I was a new prosecutor, one of the cases I'm most proud of to have been a part of a team of was a conviction on Virginia's longest cold case murder. And so the circumstances there was that the Supreme Court of the 1970s, the Supreme Court of the United States, said that the death penalty was unconstitutional in Virginia.

[01:05:44] So that's the first step, right? Secondly, after that, a murder is committed in Virginia. So when the murder is committed, we're not allowed to have capital punishment. And then following that, the Supreme Court said, hey, y'all are allowed to have death penalty back now. And so when we brought charges about 10 years ago, it was well after all of that had happened in the 1970s.

[01:06:05] And so the argument was, can we charge capital murder or is it ex post facto? And the delegate from Fairfax is exactly right in his first statement that it comes down to whether it's substantive or procedural. And if it's substantive, obviously, clearly, it deals with the substance of the charge, right?

[01:06:24] Like, we can't make something illegal today that they did yesterday. But if it's procedural, you can make that change. And so I think that the argument from the gentleman was that he's saying it's venue, so he's saying it's clearly procedural. And I understand why he said that.

[01:06:41] But remember, the exception to procedural ex post facto violations is, is it substantively unfair after the suit is brought? And here, it actually violates fundamental fairness rules. And that's the term here, fundamental fairness rules.

[01:06:59] If it violates fundamental fairness rules, then it will be improper, even if it's procedural ex post facto. That's why this is not a good law at this point. That's why I think it's going to get struck down. That's why I think it's constitutionally improper under ex post facto.

[01:07:15] I would ask you to vote no. Thank you, Mr. Speaker. Should a bill be engrossed and pass to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossing past this third reading.

[01:07:34] Clerk will. Mr. Speaker, that is the only live item on the calendar. The rest of page two and the remaining bit of the calendar is informational only. That completes the calendar? Yes, sir. Per House Rule 51, the House is returned to the morning hours. Does the clerk have any additional announcements or communications?

[01:07:50] Mr. Speaker, simply remind the body, 3 o'clock is the deadline. Looking ahead to this afternoon's meeting schedule, there is a committee on rules. Its study subcommittee will meet

immediately upon adjournment of the House. They'll be in House Committee Room B over on the second floor of the GAB Committee for Courts of Justice.

[01:08:09] Full committee is canceled. However, the Courts of Justice Criminal Subcommittee will meet 15 minutes upon adjournment of the House. They'll be in House Room C next door, again, on the second floor. Appropriations meeting is canceled for this.

[01:08:25] Full committee is canceled for today. However, the Appropriations Subcommittee on HHR, Health and Human Resources, they will be meeting immediately upon adjournment of the House up on the 12th floor Appropriations Room. And then the Committee on General Law, Subcommittee No. 5, is meeting, Subcommittee No. 5.

[01:08:44] They're at 2 o'clock, and they'll be in the lower level, House Committee Room A. Looking ahead to the weekend, snow, ice, mess, the Capitol will be closed tomorrow from 2 to 5. The Capitol will not be open on Sunday 1 to 5.

[01:09:00] Looking ahead to Monday, there are no committee meetings or subcommittee meetings of the House in the morning, legislative meetings. However, the Democratic caucus will come in at 11 on Monday, and then the Republican caucus at 11 as well.

[01:09:16] So both caucuses will be meeting before we go in at noon. The majority will make motion here momentarily. Democrats, of course, will be in House Room 1, Republicans in House Room 2. Then we'll take the afternoon schedule on Monday. That's all announcements I have at this time. Finally, Ms. Speaker, just reiterate what I said yesterday.

[01:09:48] We don't know what's coming. We're in the band of in-between everything, so sleet, ice, snow. So please, I will be keeping you abreast as best I can from working with the administration, the Capitol Police, National Weather Service, everyone. Check with your leadership as well if something comes up and you can't be here.

[01:10:06] So we will be meeting at 12 noon on Monday. So just plan and factor that into whatever all you're doing, whether you're going home and coming back early or not. But communication would be greatly appreciated. And everyone, obviously, stay safe as you can. Delegate from Alexandria, Delegate Herring.

[01:10:24] Mr. Speaker, I move that when the House adjourns today, adjourn to reconvene on Monday at 12 noon. Delegate from Alexandria, Delegate Herring moves that when the House adjourns today, adjourn to reconvene Monday at 12 noon. As many in favor of the motion will say aye. Those opposed, no. The motion is agreed to.

[01:10:40] The delegate from Alexandria, Delegate Herring. Mr. Speaker, move that the House do now adjourn. The delegate from Alexandria, Delegate Herring, moves that the House do now adjourn. As we say, the motion will say aye. Those opposed, no. The motion is agreed to. The House turns adjourned until Monday at 12 noon.




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